IVYN GABRIEL MBATHA
versus
CLOTHING INDUSTRY PENSION FUND
and
MERCY DARE N.O

THE HIGH COURT OF ZIMBABWE
MANZUNZU J
HARARE, 9 July & 1 December 2025

COURT APPLICATION –LOCUS STANDI

T. J Mafongoya, for the plaintiff
P.T Chakanyuka, for the defendant

MANZUNZU J

INTRODUCTION

This is a court application for the registration of the 2nd respondent's ruling in terms of section 128 of the Labour Act [Chapter 28:01] (the Act). The applicant seeks relief in the following terms;

> "The ruling of the 2nd Respondent involving the Applicant and 1st Respondent handed down on 21 December 2021, be and is hereby registered in terms of section 128 of the Labour Act [*Chapter* 28:01] as a judgment of this Court to the effect that;
>
> 1.1 The 1st Respondent shall pay the Applicant 60 litres of fuel per week or the equivalent thereof in monetary terms (that is in United States Dollars or local currency equivalent) calculated from November 2009 to the date of judgement of this Honourable Court.
>
> 1.2 The 1st Respondent shall reinstate the Applicant's private medical aid benefit.
>
> 1.3 The 1st Respondent shall provide the Applicant with a Twin Cab Motor Vehicle for both business and private use.
>
> 2. The 1st Respondent shall pay the costs of this application if it opposes this application."

BACKGROUND

(1) The applicant is a male adult who is employed as a Senior Pension Officer by the 1st respondent.

(2) The 1st respondent is, Clothing Industry Pension Fund, a pension fund duly registered in terms of the laws of Zimbabwe.

(3) The 2nd respondent is Mercy Dare, a labour officer who previously handled the matter between the applicant and the 1st respondent at the conciliation level at the Ministry of Public Services, Labour and Social Welfare.

(4) In December 2008, the applicant approached a Labour officer and complained about unfair labour practices, which are unlawful transfer and the unilateral withdrawal of contractual benefits such as medical aid, parking discs, vehicle repairs and fuel.

(5) On 8 April 2009 a ruling was granted in the applicant's favour. The 1st respondent was directed to reinstate the withdrawn contractual benefits.

(6) On 16 July 2009 the 1st respondent wrote a letter undertaking to fully comply with the ruling which offered contractual benefits to the applicant.

(7) The 1st respondent failed to fully comply with the ruling. The applicant then referred the matter to the 2nd respondent, where the applicant complained about unfair labour practice by the 1st respondent.

(8) After failed conciliation, the 2nd respondent handed down a draft ruling in favour of the applicant on 21 December 2021.

(9) On 17 June 2022, the 2nd respondent filed an application for confirmation of the draft ruling in the Labour Court under case number LCH519/22.

(10) The 1st respondent raised a preliminary point and alleged that the application for confirmation had prescribed.

(11) Under judgment LCH371/22 the Labour Court dismissed the point of prescription. The 1st respondent then appealed to the Supreme Court under case number SC179/23, the Supreme Court dismissed the appeal under judgment number SC47/24.

(12) The 1st respondent then filed an application for leave for direct access in the Constitutional Court under case number CCZ 34/24, by consent the matter was referred back to the Supreme court.

(13) The 1st respondent withdrew the matter from the Supreme Court before citing changes in the labour laws.

(14) The applicant now makes an application in terms of section 128 of the Labour Act [*Chapter* 28:01], seeking the registration of the judgment of the Labour Officer, the 2nd respondent.

(15) The 1st respondent has raised a preliminary point alleging that the applicant has no *locus standi* under section 128 of the Act to bring this application before this honourable court.

(16) The 1st respondent states that the present application for registration of the labour officer's judgment can only be brought before this Honourable Court by the 2nd respondent. The 1st respondent avers that this application is fatally defective and ought to be struck off the roll.

PRELIMINARY POINT RAISED

(17) The 1st respondent alleges that the applicant has no *locus standi* to bring the present application before this Honourable Court.

ISSUES FOR DETERMINATION

(18) Whether or not the plaintiff has *locus standi.* In other words, is it competent for the applicant to bring an application for the registration of the Labour Officer's judgment under section 128 of the Act.

ANALYSIS

(18) In order to resolve the issue of *locus standi* in respect to applications brought under section 128 of the Act one needs to look at the wording of the section itself. Section 128 reads;

"**128 Transitional provisions**

(1) Where a labour officer made a draft ruling in terms of section 93(5)(c) and for what reason, the draft ruling was not registered with the Labour Court in terms of section 93(5a) and (5b) of the replaced provisions, such draft ruling shall automatically be deemed to be a judgement or ruling of the Labour Officer which for execution purposes shall be registered in the appropriate court:

Provided an employer shall have a right of appeal of the Labour Court within 30 days after notice of registration.

(2) The quantum shall be calculated based on the currency in which the judgement was made and payable in Zimbabwean currency at the prevailing official rate." (emphasis is mine).

(19) It is not in dispute that there is an extant judgment of the Labour Officer. That, this court is also an appropriate court is not in dispute. The issue is who should register the judgment. The applicant says it is the applicant. The 1st respondent says it is the 2nd respondent.

(20) Section 128 without further ado is silent as to who should bring the application for registration. The applicant relies on the general principles relating to *locus standi* in its argument that the applicant has *locus standi*. The 1st respondent has sought to rely on the provisions of the repealed section 93 to close the *lacuna* in section 128.

(21) The answer rests on what was the intention of the legislature? Was it intended that the applicant or the 2nd respondent should bring the application. It becomes an interpretation issue.

(22) In Allied *Bank Limited* v *Dengu & Anor* SC 52/16 the court explained the principle of *locus standi* as follows:

` "It is quite clear that the question of *locus standi* does not arise in the present case for the following reason. The principle of *locus standi* is concerned with the relationship between the cause of action and the relief sought. Once a party establishes that there is a cause of action and that he/she is entitled to the relief sought, he or she has *locus standi.* The plaintiff or applicant only has to show that he or she has direct and substantial interest in the right which is the subject-matter of the cause of action. In the case of Ndlovu v Marufu HH-480-15, the court had the following to say concerning the concept of *locus standi* It is trite that *locus standi* exists when there is direct and substantial interest in the right which is the subject matter of the litigation and the outcome thereof. A person who has *locus standi* has a right to sue which is derived from the legal interest recognised by the law. In the case of Stevenson v Minister of Local Government and National Housing and Ors SC 38-02, the court in outlining *locus standi in judicio* stated that in many cases the requisite interest or special reason entitling a party to bring legal proceedings has been described as "a real and substantial interest" or as a direct and substantial interest."

(23) The case of Museredza & Ors v Minister of Agriculture, Lands, Water and Rural Settlement & Ors CCZ 01/22 the court stated that:

"It is settled that the principle of *locus standi* is concerned with relationship between the cause of action and the relief sought. Thus, a party needs direct, personal and substantial interest in the matter in contention. In *Zimbabwe Stock Exchange* v *Zimbabwe Revenue Authority SC* 56/07 MALABA JA (as he then was) said:

> "The common law position on *locus standi in judicio* of party instituting proceedings in a court of law is that to justify participation in the action, the party must show that he or she has a direct and substantial interest in the right which is the subject matter of the proceedings and the relief sought"

ANALYSIS

(24) From the above cited authorities, the principle of *locus standi* is concerned with the relationship between the cause of action and the relief sought. The applicant seeks the registration of the 2nd respondent's ruling that was granted in his favour. The relief sought by the applicant is the restoration of benefits by the 2nd respondent's ruling of 21 December 2021. The applicant has shown that he has a direct and substantial interest in the matter. The applicant has *locus standi* to pursue this matter. The preliminary point thus raised that the applicant lacks the prerequisite *locus standi* is dismissed.

(25) The 1st respondent argued that because section 128 of the Act was silent as to who should register, a presumptive interpretation was necessary by looking at the repealed provision. Before the repeal of section 95, the Labour officer was expressly authorized to register.

(26) Now that the repealed sections are no longer the law, the court has a duty to interpret section 128 purposively. In my view the section must be interpreted in favour of the applicant. The common law principles of determining *locus standi* must apply as enunciated above.

(27) The Kadoma Textiles case relied upon by the 1st respondent is distinguishable from the present case in that, the former case has to do with the registration of the confirmed ruling in terms of section 92.

(28) In *casu*, the interpretation must favour the applicant. The Labour officer, 2nd respondent, without clear statutory authority cannot start the registration process. The intention of the Legislature is to allow the winning party to register the ruling as is found in the procedure for the registration of awards by an arbitrator.

DISPOSITION

1. The applicant has *locus standi*.
2. The preliminary point raised by the respondent that the applicant has no locus standi is dismissed with costs.